

25AVCV01613 25AVCV01613

County: los-angeles

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Case Number: 25AVCV01613 Hearing Date: September 1, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

NANCY AGUILAR,

Plaintiff,

v.

ENA VALENZUELA; HAPPY PLACE
NUTRICION CLUB; BLUE KNIGHT LLC; and DOES 1 through 50, inclusive,

Defendants.

Case

Number 25AVCV01613

[TENTATIVE]

STATEMENT OF
DECISION

Date

of Hearing: September 1, 2026

Dept. A-14

Judge William H.
Forman

I.

Background

This is a personal injury and negligence case. Plaintiff and Cross-Defendant Nancy Aguilar (Aguilar) demurs to the cross-complaint filed by Defendant and Cross-Complainant Ena Valenzuela (Valenzuela) in its entirety.

On December 9, 2025, Aguilar filed her complaint against Defendants Valenzuela, Happy Place Nutricion Club (Happy Place), and Blue Knight, LLC (Blue Knight) (collectively Defendants), asserting two causes of action for (1) General Negligence and (2) Premises Liability.

Aguilar asserts that on April 7, 2025, she was participating in a Zumba workout class conducted at the premises located at 1645-1647 E. Palmdale Blvd., A, Palmdale, CA 93550, known as Happy Place, and that the floors of the premises were in an unclean, slippery, and dangerous condition, which created a hazardous condition and caused Aguilar to fall to the floor. (Compl., Premises Liability Attachment.) Aguilar asserts that Defendants negligently managed and maintained the premises, causing Plaintiff to slip and fall. (Compl., General Negligence Attachment.)

On February 4, 2026, default was entered as to Blue Knight.

On February 13, 2026, Valenzuela filed an answer to the complaint.

On February 18, 2026, Valenzuela, individually and doing business as Happy Place, filed a cross-complaint against Cross-Defendants Aguilar aka Nancy Espinoza, Andrea Haro (Haro), and DOEs 1 through 60, inclusive. The cross-complaint asserts causes of action for (1) Indemnification, (2) Apportionment of Fault, (3) Declaratory Relief, (4) Assumption of Risk, and (5) General Negligence. Generally, Valenzuela asserts

that Haro is an independent Zumba instructor who was conducting classes on the premises on the date of the incident, and that Haro permitted Aguilar, one of Haro's students, to bring faulty equipment to her Zumba class which failed and caused Aguilar to fall. (Cross-Compl., General Negligence Attachment.)

On April 3, 2026, Aguilar filed a declaration of demurring party in support of an automatic extension stating her counsel was unable to meet and confer with Valenzuela, entitling Plaintiff to a 30-day extension of time within which to file a responsive pleading and rendering a responsive pleading due on or before May 8, 2026.

On April 17, 2026, default was entered as to Cross-Defendant Haro.

On May 8, 2026, Aguilar filed the present demurrer to the cross-complaint.

This demurrer is unopposed.

II.

Preliminary

Procedural Issues

Meet and Confer Requirement – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve with the demurrer a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Aguilar's counsel David Yadidi declares that on April 2, 2026, prior to filing the present demurrer, his office sent a meet and confer letter to Valenzuela explaining the legal basis for the demurrer. (Yadidi Decl., ¶ 3, Ex. 1.) Yadidi also filed a declaration of

demurring party in support of automatic extension with the Court on April 3, 2026. (Yadidi Decl., ¶ 4.) As of the filing of the demurrer on May 8, 2026, Valenzuela had not responded to the letter. (Yadidi Decl., ¶ 5.) The Court finds the meet and confer requirement has been satisfied.

III.

Legal

Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action and that the pleading is uncertain, ambiguous, and unintelligible. (Code Civ. Proc., § 430.10, subds. (e)-(f).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 126.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer

without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV.

Discussion

Application – Aguilar

demurs to the cross-complaint in its entirety pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f) and California Rules of Court rule 3.1320 on the grounds that the cross-complaint fails to state facts sufficient to constitute any cause of action against Aguilar and that it is uncertain, vague, and ambiguous. (Notice of Demurrer, p. 2:7-11, 3:4-6.)

a.

Uncertain, Ambiguous, and Unintelligible

Aguilar demurs pursuant to Code

of Civil Procedure section 430.10, subdivision (f). However, Aguilar does not put forth specific arguments speaking to Section 430.10(f) in the demurrer, and appears to intertwine her argument that the claims and allegations asserted in the cross-complaint are “vague, incomplete, and lack the requisite material facts needed to establish any claims of wrongdoing” with her arguments under Section 430.10(e) that the cross-complaint fails to state facts sufficient to constitute a cause of action. (Demurrer, p. 6:24-28.)

“A defendant may demur to a complaint... on the ground that the ‘pleading is uncertain.’ (Code Civ. Proc., § 430.10, subd. (f).) The term ‘uncertain’ includes ‘ambiguous’ and ‘unintelligible.’ (Ibid.).” (Van Horn v. Dep’t of Toxic Substances Control (2014) 231 Cal. App. 4th 1287, 1295.) A “[d]emurrer for uncertainty is directed at the allegations actually made. [Citation.] Demurrer for uncertainty does not lie as to immaterial matter. [Citation.] Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties. [Citation.]” (Dumm v. Pac. Valves (1956) 146 Cal. App. 2d 792, 799.) “A special demurrer on the ground that an answer is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible. [Citation.]” (Coons v. Thompson (1946) 75

Cal. App. 2d 687, 690 (citation omitted).)

Here, Aguilar does not specify where in the cross-complaint the pleading is ambiguous, uncertain, or unintelligible. Furthermore, the cross-complaint expressly refers to the parties by name, and while the allegations may not state facts sufficient to constitute a cause of action under Section 430.10(e), the cross-complaint is not so unintelligible that Aguilar is not on clear notice of who a specific claim, allegation, or sentence is brought against or otherwise referring to.

Therefore, Aguilar's demurrer is not sustained on this ground.

b.

First Cause of Action – Indemnification

The cross-complaint asserts a cause of action for indemnification against Cross-Defendants Aguilar and Haro, alleging that (1) Aguilar and Haro were the agents, employees, co-venturers, partners, or in some manner agents or principals, or both, for each other and were acting within the course and scope of their agency or employment, (2) that Aguilar alleges, among other things, conduct entitling Aguilar to compensatory damages against Valenzuela, and that Valenzuela contends she is not liable for the events and occurrences described in Aguilar's complaint, and (3) that if Valenzuela is found to be responsible to Aguilar, Valenzuela's liability would be based solely on a derivative form of liability not resulting from her conduct but from an obligation imposed by law and she would be entitled to indemnification from both Haro and Aguilar. (Cross-Compl., ¶ 7(a)-(c).)

Aguilar argues that this cause of action is legally insufficient because it fails to allege facts establishing a cognizable basis for indemnity against Aguilar. (Demurrer, p. 7:13-14.) Specifically, Aguilar argues that the cross-complaint fails to allege facts demonstrating the existence of a legal relationship giving rise to a duty to indemnify or facts showing that any liability of Valenzuela is derivative in nature and not based on her own independent wrongdoing. (Demurrer, p. 7:14-19.)

As to express or contractual indemnification, "[a]n indemnitee seeking to recover on an agreement for indemnification must allege the parties' contractual relationship, the indemnitee's performance of that

portion of the contract which gives rise to the indemnification claim, the facts showing a loss within the meaning of the parties' indemnification agreement, and the amount of damages sustained." (Four Star Electric, Inc. v. F & H Construction (1992) 7 Cal.App.4th 1375, 1380.)

Here, the cross-complaint does not allege facts sufficient to state a cause of action for express indemnity. Valenzuela has not alleged any contractual relationship existed between her and Aguilar, Valenzuela's performance of that portion of the contract which gives rise to the indemnification, or loss within the meaning of any indemnification agreement.

"To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant." (Platt v. Coldwell Banker Residential Real Estate Services (1990) 217 Cal.App.3d 1439, 1445, fn.7.) "The right to indemnity flows from payment of a joint legal obligation on another's behalf." (Expressions at Rancho Niguel Assn. v. Ahmanson Developments, Inc. (2001) 86 Cal. App. 4th 1135, 1139.) "The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible." (Ibid.)

The general rule is that a "defendant's equitable indemnity action is independent of the plaintiff's action and a defendant is entitled to pursue his own indemnity action so long as the statute of limitations on that action has not expired." (Columbus Line, Inc. v. Gray Line Sight-Seeing Companies Associated, Inc. (1981) 120 Cal.App.3d 622, 631.) "[U]nder the governing provisions of ... Code of Civil Procedure [section 428.10, subdivision (b)], a named defendant is authorized to file a cross-complaint against any person, whether already a party to the action or not, from whom the named defendant seeks to obtain total or partial indemnity." (Paragon Real Estate Group of San Francisco, Inc. v. Hansen (2009) 178 Cal.App.4th 177, 183.)

However, it is well established that "an action for equitable indemnity is premised upon a joint legal obligation to another for damages." (Children's Hospital v. Sedgwick (1996) 45 Cal. App. 4th 1780, 1787.) "[C]oncerning matters of substantive law, an action for equitable indemnity is 'wholly derivative and subject to whatever immunities or other limitations on liability [that] would otherwise be available.'" (Ibid.) Simply put, the general underlying principle of equitable indemnity is that "there can be no indemnity without liability." (Ibid; see also Munos v. Davis (1983) 141

Cal.App.3d 420, 425.) It is also established that “a defendant has no cause of action for equitable indemnity against the victim of his own tort’ because there is no equitable basis for shifting liability in such a situation.” (Grindle v. Lorbeer (1987) 196 Cal. App. 3d 1461, 1467; see also Seamen's Bank v. Superior Court (1987) 190 Cal.App.3d 1485, 1491.)

Here, Valenzuela's indemnity cause of action against Aguilar is legally untenable. There can be no “joint legal obligation to another for damages” because Valenzuela's claim is, essentially, that Aguilar owed herself a legal obligation and is jointly liable as a tortfeasor against herself for her own damages. This is not a legally sustainable allegation, and Valenzuela's equitable indemnity claim therefore lacks the necessary element of common, joint, legal liability to an injured person to maintain this cause of action. (See Children's Hospital, supra, 45 Cal.App.4th at 1787.)

Furthermore, “[t]he purpose of equitable indemnification is to avoid the unfairness, under joint and several liability theory, of holding one defendant liable for the plaintiff's entire loss while allowing another responsible defendant to escape ‘scot free.’” (William L. Lyon & Associates, Inc. v. Superior Court (2012) 204 Cal. App. 4th 1294, 1314.) To the extent that Valenzuela asserts that Aguilar was negligent, and that her own negligence was the cause in fact of her injuries, the proper mechanism through which fault and liability may be apportioned is by asserting comparative fault or negligence as an affirmative defense, which is precisely what Valenzuela has done here. (See Answer, ¶ 4.) Accordingly, equitable apportionment of liability for damages based on comparative fault or negligence is already being litigated in this action, and Valenzuela's first cause of action fails to state facts sufficient to constitute a legally cognizable cause of action for indemnification against Aguilar.

Aguilar's demurrer is SUSTAINED
as to the first cause of action without leave to amend.

c.

Second Cause of Action – Apportionment

The second cause of action

asserted in the cross-complaint states that Aguilar is responsible, in whole or in part, for injuries suffered by Aguilar, and that if Valenzuela is ultimately liable to Aguilar, Aguilar should be required to pay a share of her own judgment in proportion to her comparative negligence in causing her own damages and to reimburse Valenzuela for any payments she makes to Aguilar in excess of her proportional share of Aguilar's and Haro's negligence. (Cross-Compl., ¶ 8.)

Aguilar argues that this cause of action fails to state facts sufficient to constitute a cause of action because comparative fault or apportionment of damages does not constitute an independent cause of action, but is a doctrine governing allocation of damages among parties after liability has been established. (Demurrer, p. 8:6-11.) Aguilar also contends that Valenzuela fails to plead any independent wrongdoing or cognizable legal theory of recovery against Aguilar. (Demurrer, p. 8:12-18.)

For the same reasons as stated above, this is not a legally cognizable claim against Aguilar. Apportionment seeks to "distribute responsibility in proportion to fault" on the grounds that "in a system in which liability is based on fault, the extent of fault should govern the extent of liability." (*Li v. Yellow Cab Co.* (1975) 13 Cal. 3d 804, 810-11.) Apportionment of fault allows a concurrent tortfeasor to obtain partial indemnity from other concurrent tortfeasors on a comparative fault basis. (*American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 598.) The claim requires a showing that independent negligent actions of a number of tortfeasors are each a proximate cause of a single injury, and the injured person may sue one or all of the tortfeasors to obtain a recovery for his injuries. (*Id.* at 587.)

The general principles and equitable considerations of apportionment extend to other tortfeasors who are jointly liable to another for damages. As discussed, Aguilar is not a victim of her own tort. These same principles and equitable considerations extend to a plaintiff who may be liable for their own injuries, or have contributed to their own injuries, by way of comparative negligence, which Valenzuela here has appropriately asserted as an affirmative defense. Valenzuela seeks to both apportion fault based on Aguilar's alleged negligence and reduce Aguilar's overall recovery based on her alleged comparative negligence as a tortfeasor against herself for her own injuries. The second cause of action, therefore, is not sustainable, and because Aguilar is not jointly responsible for damages to another, the second cause of action fails to state facts sufficient to constitute a cause of

action.

Aguilar's demurrer is SUSTAINED

as to the second cause of action without leave to amend.

d.

Third Cause of Action – Declaratory Relief

Valenzuela's third cause of action seeks declaratory relief, asserting that an actual controversy exists between the parties concerning their respective rights and duties because Valenzuela contends, and Aguilar disputes, that Valenzuela has no duty of care to Aguilar because Aguilar was a student of Haro, an independent instructor. (Cross-Compl., ¶ 9.)

Aguilar argues the cross-complaint fails to state a cause of action for declaratory relief because the claim is entirely derivative of the issues raised in the operative complaint in the action, that these contentions constitute affirmative defenses to liability in the underlying negligence action, and the cause of action merely duplicates the issues that must be necessarily determined in the main action. (Demurrer, p. 9:6-12.)

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290). "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object

of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (Hood v. Superior Court (1995) 33 Cal. App. 4th 319, 324.)

The relief sought and issues raised in Valenzuela's cross-complaint are entirely duplicative of the issues that must be determined in the main action on Aguilar's negligence cause of action, namely, whether Valenzuela owed a duty to Aguilar which was subsequently breached. The third cause of action is entirely derivative and seeks determination of identical issues raised by Aguilar, Valenzuela has another adequate form of relief in the main action in defending against Aguilar's claims, and no new form of relief is sought.

Accordingly, Aguilar's demurrer is SUSTAINED as to the third cause of action without leave to amend.

e.

Fourth Cause of Action – Assumption of Risk

Valenzuela's fourth cause of action is for assumption of risk and asserts that Aguilar assumed the risk of injury by knowingly and voluntarily hiring Haro as her Zumba instructor, who was not an employee or affiliated with Valenzuela dba Happy Place, and Aguilar knowingly used her own faulty equipment in class, thereby assuming the risk of injury. (Cross-Compl., ¶ 10.)

Aguilar demurs on the grounds that assumption of risk is not an independent cause of action in California, but rather, an affirmative defense. (Demurrer, p. 9:15-19.)

Aguilar is correct. Assumption of risk is not a cause of action. (See Knight v. Jewett (1992) 3 Cal.4th 296, 325; Prescott v. Ralph's Grocery Co.(1945) 42 Cal.2d 158, 161-62.) Assumption of risk is an affirmative defense, which may act as a complete bar to a plaintiff's cause of action or as part of the comparative fault scheme, where the trier of fact considers relative responsibility of the parties in apportioning loss. (Saffro v. Elite Racing, Inc. (2002) 98 Cal.App.4th 173, 178.) This defense has already been asserted by Valenzuela. (See Answer, ¶ 6.)

Aguilar's demurrer is SUSTAINED

as to the fourth cause of action without leave to amend.

f.

Fifth Cause of Action – General Negligence

Valenzuela's final cause of action for general negligence asserts that Haro was the legal cause of damages to Aguilar by permitting her to bring her own equipment to the premises, and asserts that Aguilar negligently maintained her own exercise equipment which she brought to Zumba class, broke while Aguilar was on the premises, and the equipment caused Aguilar to fall. (Cross-Compl., ¶ 11, General Negligence Attachment.)

Aguilar argues this claim fails because the pleading relies on vague and conclusory assertions and fails to identify any duty owed by Aguilar to Valenzuela, the nature of any alleged breach, of facts establishing a causal connection to any harm claimed by Valenzuela. (Demurrer, p. 10:10-16.) Aguilar also asserts the cross-complaint fails to articulate a legally cognizable theory of liability to the extent it seeks to impose derivative liability or allocate fault for Aguilar's injuries. (Demurrer, p. 10:17-24.)

To state a claim for negligence, a complainant must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," (3) "proximate cause" and (4) a resulting injury. (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Here, it is unclear from a plain reading of the allegations whether Valenzuela brings a cause of action for general negligence against Aguilar, or solely against Haro. In any event, as Aguilar argues, the cross-complaint fails to state any facts sufficient to establish any duty owed by Aguilar to Valenzuela or Happy Place, a breach of any duty by Aguilar, harm, damage, or injury resulting from Aguilar's breach, or causation. The cross-complaint does not allege anywhere that Valenzuela or Happy Place suffered any damages from any conduct, wrongdoing, or negligence on the part of Aguilar, and the allegations of Aguilar's negligence in maintaining her equipment appear to speak only to Valenzuela's assertions that the cause of Aguilar's injuries was her own negligently maintained equipment. As such, the cross-complaint fails to state facts sufficient to constitute a cause of action for negligence, and the Court does not see any reasonable possibility of amendment.

Accordingly, Aguilar's demurrer
is SUSTAINED as to the fifth cause of action without leave to amend.

V.

Conclusion

Plaintiff and Cross-Defendant Nancy Aguilar's Demurrer to
the Cross-Complaint is SUSTAINED without leave to amend.

Plaintiff and Cross-Defendant Nancy Aguilar's request for
costs incurred in this action is DENIED.